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THE CHOSEN PEOPLE AT GROUSE MOUNTAIN

Abstract

A powerful idealized cognitive metaphor related to conquest and dominance paired with ideological commitments to individual human rights frame the dominant way of assessing and valuing land in what is now the United States. By examining this correlation, it becomes possible to challenge hegemonic assumptions that have become so commonsensical they are rarely seen for what they are – imaginative constructs. By illuminating the connection, we can envision and mobilize traditional Indigenous ways-of-being that are life-affirming and offer an alternative to reckless acquisition and alienation from all our relatives.

Keywords: *indigenous-relationality, land-stewardship, dominion*

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New Code of the West

During the fall of 2018, The Grouse Mountain Lodge in Whitefish, Montana (a town renowned for its stunning scenery and infamous as the former home and headquarters of neo-Nazi, Richard D. Spencer's white nationalist movement), hosted Lauralee O'Neil, Elaine Willman, Ammon Bundy[2] and other 'New Code of the West' enthusiasts for a one day seminar.[3] Organized under the theme 'This West is OUR West', the conference featured roundtable discussions and notable presentations. One of the highlights featured Bundy's call to support 'plenary jurisdiction' of states. "The issue we are having is that states aren't subsidiaries under the federal government. The U.S. Territory was designed to be temporary until states had enough population to stand on their own."[4]

Key components of his plan to 'check government overreach' and to transfer federal lands to state control, also vocalized by Willman and O'Neil, includes a desire to terminate American Indian treaty rights and eliminate tribal sovereignty.[5] Many of those gathered that day have ties to a broader national political organization -- Citizens Equal Rights Alliance (CERA), a group formed during the 1970s and rooted in three subsequent 'Sagebrush Rebellions.'[6] Their opposition to the unique status of American Indians coincides with many of their talking points. Attorney Karen Budd-Falen, for example, represented New Mexico miner Richard Manning in 1995 in his legal battle for private rights on public lands. Her strategy included crafting a legal argument against tribal sovereignty - one that pivoted on a "custom-and culture"[7] approach. A descendant of three generations of Wyoming cattle ranchers, Budd-Falen insists that ranching families possess the right to use Western lands *in any way* that is conducive to profitability, regardless of tribal, federal, or state restrictions.

Today, CERA members describe themselves as a collection of voices throughout the Western states beleaguered by federal overreach, as well as 'Greenies, Globalists and bureaucratic agencies seeking to 'come after our land and water.'[8] In spite of inflammatory

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[2] Ammon Bundy is best known for his involvement in a standoff between armed protesters and agents of the Bureau of Land Management (BLM) in 2014. Three years later, he led another armed militia in taking over the Malheur National Wildlife Refuge headquarters to protest 'government overreach.' Bundy served two years while awaiting trial but ultimately was acquitted by juries for both actions.

[3] Elizabeth Williamson, "How a Small Town Silenced a Neo-Nazi Hate Campaign: A Montana Town Reflects on Its Effort to Drive Former President Donald J. Trump's Extremist Supporters Back to the Fringes," The New York Times, 2021, https://www.nytimes.com/2021/09/05/us/politics/nazi-whitefish-charlottesville.html.

[4] Scott Shindledecker, "Ammon Bundy Speaks in Whitefish, Groups Hold Rally in Response," Whitefish Pilot, 2018, https://whitefishpilot.com/news/2018/oct/15/ammon-bundy-speaks-in-whitefish-groups-hold-9/.

[5] Citizens Equal Rights Alliance, "Home Page for Citizens Equal Rights Foundation," 2025, https://citizensalliance.org/index.html.

[6] U.S. Department of the Interior, Bureau of Land Management, The Federal Land Policy and Management Act of 1976, as Amended, U.S. Department of the Interior, Bureau of Land Management, Office of Public Affairs, Washington, DC (2022), 110.

[7] Anita P. Miller, "Private Rights in Public Lands: The Battle Intensifies," Urban Lawyer 27, no. 4 (1995): 889; Florence Williams, "Sagebrush Rebellion Ii: Some Rural Counties Seek to Influence Federal Land Use," High Country News 24, no. 3 (1992), https://www.hcn.org/issues/24-3/.

[8] Tristan Scott, "Controversial 'New Code of the West' Conference Set in Whitefish," Flathead Beacon, 2018, https://flatheadbeacon.com/2018/10/06/controversial-new-code-west-conference-set-whitefish/.

rhetoric, this type of right-wing populism is subject to the same basic dynamics as other social movements. Motivated by a combination of material and ideological grievances, they are not dangerous because they are irrational fanatics. They are dangerous because they have a concrete and potentially achievable agenda related to federal and state public lands, strong assertions of state rights and personal sovereignty and rhetorical and political aims that undermine Indigenous interests. Are they ignorant about the unique political status of Native communities? Yes. Ethnocentric and often racist? Certainly. But not irrational. And here in Montana, they are our neighbors.

After being present and listening to the delegation of Haudenosaunee women and The Story of the Empty Cradleboard Mandate at the Religious Origins of White Supremacy conference at Syracuse University, I am even more interested in worldviews in conflict as they play out in places of significance. Where does the system of domination and erasure come from? How is it endlessly replicated? To begin to answer these questions, I ask you to keep in mind three basic findings of cognitive theory. We can debate the theory overall as well as its utility for cross-cultural analyses, but for my purposes, I draw from them to make my argument. They are as follows:

- The mind is embodied: the structure of reason comes from the details of our embodiment/the peculiarities of the body,
- Thought is mostly unconscious: beneath the level of cognitive awareness
- Abstract thoughts are largely metaphorical:

These basic tenets form the building blocks of worldview. Extending these findings, we can explore conceptual metaphors and how they function in real-time in quarrels over land.

Rights are for Chosen People

Montana is home to twelve sovereign Indigenous nations and seven reservations. Deciding how and why specific interests prevail in land disputes is a constantly shifting endeavor and has historically depended on gerund power dynamics. Two things remain consistent however: the first; deciding who gains authority to determine specific outcomes in certain areas is propped up by a perceived dualism between public-land enthusiasts and/or conservation proponents on one side, with private stakeholders on the other. Second: those with power to decide outcomes in these disputes inevitably claim ownership, thus agency. Increasingly throughout the American West, these quarrels are marked by protracted negotiations between consortiums of wealthy landowners and government entities, including the National Forest Service, Fish and Wildlife, and The Bureau of Land Management (BLM) as well as interested nonprofits, advocacy groups, NGOs, etc Whatever the outcome, more times than not Native peoples get the short end of the stick. Something is hidden in that regardless of which ideological side one happens to be on, both represent material manifestations of a dominant idealized cognitive model (ICM), what Steven T. Newcomb has identified as The Chosen People – Promised Land model.[9] This model is predicated on a conceptual metaphor - formed when what is called a target domain is conceptualized in terms of a source domain, or what George Lakoff and Mark Johnson identify as the Source-Path-Goal model. The model, obscured yet always present in human interactions, coincides neatly with a "rights" discourse. When linked together, they are mobilized most effectively in square-offs over lands in the West. Both the ICM and the rights discourse share a religious origin, and both function as effective constraints and limitations to ways of thinking about and valuing land. This means that generally, claims to

[9] Steven Newcomb, Pagans in the Promised Land: Decoding the Doctrine of Christian Discovery, 3rd ed. (Chicago Review Press, 2008), https://www.amazon.com/Pagans-Promised-Land-Christian-Discovery/dp/1555916422.

lands that are not structured by the same philosophical grounding are overlooked or ignored.

The purpose of this project is to uncover a relationship between the ICM and discourse in order to identify how Indigenous claims to land are invisibilized in the upholding of (religiously-based) eurochristian[10] values in courts of law, even as those values are concealed by secular rhetoric.

A Right to Discover

In 1844, the establishment of the forty-ninth parallel as a border between Canada and The United States directly affected Indigenous communities in this area and accelerated the violent displacement that had been ongoing for centuries.[11] The Reservation Period, followed by Allotment and Assimilation (1887-1934), severed Native communities that had once been united, and broke up lands held in common for centuries. Displacement of Native communities in this area of the United States replicated a duplicitous pattern represented most clearly by the tenure of Isaac Stevens as Superintendent of Indian Affairs. The Salish, for example, were among several Native communities participating in negotiations of the Hellgate Treaty of 1855. The document was clearly understood by *them* to mean the Bitterroot Valley and other territories would stay in the hands of their communities, and white settlement would be limited.[12] Shortly after the signing however, Stevens voiced his intent to obtain cession of ownership in favor of expanded settlement by Americans. This choice is significant and critically important. The fact that Stevens substituted 'Americans' for cession-seeking white settlers follows the same pattern seen in a Supreme Court decision Johnson & Graham's Lessee v McIntosh 21 US 543 (1823), where Chief Justice John Marshall substituted the term 'Christians' for Europeans.[13] The switch lends authority to and extends ideological commitments (which Marshall cited) enshrined in papal bulls from 1455-1493, where the inventive Doctrine of Discovery authorized European nations to take lands not occupied by Christians – thus instituting worldwide colonial conquest. Shortly after Isaac Stevens made his intentions clear, he was elected governor of Washington territory, which included what later became the states of Idaho and Montana; thus, the eventual carving of Indigenous lands into three separate states neatly laid the groundwork for subsequent land grabs, including the Dawes Act of 1887.

This template of 'rights of discovery' continues to serve a powerful purpose and is present in the contemporary context of ongoing land swaps in Montana. In January 2025 for example, Custer Gallatin National Forest supervisor Matthew Jedra authorized the "East Crazy Inspiration Divide Land Exchange" for areas within The Crazy Mountains in south-central Montana. 'The Crazies' (a misnomer for what Apsaalooké (Crow) peoples call foreboding or mysterious) are within the ancestral homelands of two or more Indigenous nations.[14] Negotiations had been ongoing since 2015, when members of The Yellowstone

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[10] Tink Tinker, "Towards an American Indian Indigenous Theology," The Ecumenical Review 62, no. 4 (2010): 340–51, https://doi.org/10.1111/j.1758-6623.2010.00074.x.

[11] Michael Bruised Head, "The Colonial Impact of the Erasure of Blackfoot Miistakistsi Place Names in Paahtomahksikimi, Waterton Lakes National Park" (Doctoral Thesis, University of Lethbridge, 2022), https://www.proquest.com/openview/3b14ee8be903126b1152521c11299e6b/1?cbl=18750&diss=y&pq-origsite=gscholar; Larry Burt, "Nowhere Left to Go: Montana's Crees, Metis, and Chippewas and the Creation of Rocky Boy's Reservation," Great Plains Quarterly 7, no. 3 (1987): 195–209; Vernon Finley - Native America Speaks, directed by GlacierNPS (YouTube, 2020), Video, 51:03, https://www.youtube.com/watch?v=lslv5naBSdI.

[12] Jamie Shepard, Challenge to Survive: History of the Salish Tribes of the Flathead Indian Reservation (Salish Kootenai College Press, 2008), https://library.skc.edu/challenge-to-survive-history-of-the-salish-tribes-of-the-flathead-indian-reservation-2/.

[13] Johnson & Graham's Lessee v. McIntosh | 21 U.S. 543 (1823) (U.S. Supreme Court Center 1823), https://supreme.justia.com/cases/federal/us/21/543/.

[14] Awaxaawippíia: The Crow Nation's Sacred Ties, directed by Wild Montana (YouTube, 2018), Video, https://www.youtube.com/watch?v=9OlUx6Xg4TY&t=1s.

Club approached The United States Forest Service to help resolve a claim that would help expand Yellowstone Club ski terrain in Big Sky. Club members include celebrities such as Jennifer Lopez and Tom Brady, 'tech bros' including Mark Zuckerberg and Jeff Bezos, and right-wing politicians, including Secretary of the Department of the Interior, Doug Burgum. Not coincidentally, Club facilities served as a campaign stopover for Donald Trump during the 2024 presidential campaign.

A powerful and shared notion that land and its resources are ideally mapped, marked off, bounded, set-aside, and guarded, allowing limited access under specific conditions, comprises a significant part of the dominant worldview[15] that cannot construe land aside from an inclination to divide, segment, regulate, and *assert ownership* of it. The ICM arises from what cognitive theorists have identified as a Source-Path-Goal conceptual metaphor,[16] whereby Native-held lands of North America (target domain) are understood in terms of the Promised Land in the biblical narrative (source domain). The result is two conceptual metaphors: (1) Native lands are the promised land (promised by God to the United States), and (2) The American People (white settlers) are the Chosen People (selected by God to take over Native lands of North America). The Canaanites (pagans or heathens) in the Old Testament narrative are a source domain concept carried over to the target domain concept of America Indians, thus resulting in the conceptual metaphor American Indians Are the Canaanites or Pagans In The Promised Land, and an obstacle to fulfilling their manifest destiny. The Goal? Transfer of all lands in the American West from Indigenous hands to 'American' hands.

The Invention of Property

Tracing the history of the rights discourse and its ties to a fictitious, but religiously based 'Natural Law' concept is too extensive for this analysis, but an abbreviated timeline includes Aristotle's *Natural Law* (ca 384 bce), where formative ideas about a divine directive were developed. Much later, they were extended in 1452 with *Rights of Discovery under Natural Law*. These ideas eventually were neatly intertwined with conquest and codified in the 1493 papal bull *Inter Caetera* and the Discovery Doctrine. The nexus of power in the Christian empire eventually moved from papal authority to shared power between the Vatican and European monarchs, eventually towards a concept called the divine right of kings. It is the latter construal that fueled theories on rights to property. The discourse amplified in 1682 with *On the Duty of Man and Citizen According to Natural Law*, but the idea of *inherent* human rights was broadened by John Locke in 1689, when he established 'rights to property' in *Two Treatises of Government*. 'Wild Indians', Locke surmises, have no *real* rights to property in land - can 'no longer have any right to it,'[17] for two reasons: labor, being a productive use of God-given resources, precludes Indians, whose only mode of subsistence, he fallaciously construes (having never visited the colonies nor having the slightest notion of, for example, sophisticated Haudenosaunee methods of production and agriculture), is hunting and gathering (i.e., the fruit or venison, and so on). Locke goes on…'*As much Land* as a Man Tills, Plants, Improves, Cultivates, and can use the Product of, so much is his *Property* --[18] This passage not only foreshadows his definitive conclusion, but for all those who continue to profit from his conjectures, it seals the deal; Indians, Locke

[15] Linda McCulloch, Essential Understandings Regarding Montana Indians (Montana Historical Society, 2018), https://mhs.mt.gov/education/textbook/EssentialUnderstandings.pdf.

[16] George Lakoff and Mark Johnson, Philosophy in the Flesh: The Embodied Mind & Its Challenge to Western Thought (Basic Books, 1999), https://www.amazon.com/Philosophy-Flesh-Embodied-Challenge-Western/dp/0465056741.

[17] Richard Tuck, The Rights of War and Peace. Political Thought and the International Order from Grotius to Kant (Oxford University Press, 1999).

[18] John Locke, Two Treatises of Government: ... 1690, with Internet Archive (London, 1690), http://archive.org/details/bim_early-english-books-1641-1700_two-treatises-of-governm_locke-john_1690.

states, possess only natural rights of the commons. According to his logic, this meant their lands were free for the taking.

Next came the *Declaration on the Rights of Man and Citizen* in 1789, and when we follow this ideological trajectory through Marshall's writing of his 1823 majority opinion, it foreshadows The Universal Declaration of Human Rights (adopted by the United Nations General Assembly in 1948). All of these pronouncements are conceptualizations based on a religiously generated hierarchical categorization of worldly existence. My argument here is that the exercise of 'rights' in an American juridical context, specifically centering around property rights in the American West, is an embodied metaphor and neural entailment of the fictitious 'natural law' - a principal component of a eurochristian worldview, promoted by English philosopher John Locke, and one powerfully aligned with the ruminations of those considering themselves 'chosen people.'

Is Federal Indian Law 'Natural Law'?

The conceptualization of "rights" and its associated discourse, continue to heavily influence federal Indian laws and juridical pronouncements that favor and promote 'chosen people' in 'promised lands.' It doesn't matter if one finds themselves passionately devoted to one side or the other in the manufactured public/private dichotomy. Both are predicated on the same ICM and both are propped up by ideas about rights and thus, ownership. Anecdotally, one can buy a T-shirt or bumper sticker today proclaiming 'I am a public land owner.' These laws mirror a teleological trajectory in which ideal prototypes (Eden, New World) will be restored and ultimately, (re)claimed by 'chosen' people. In 'How and Why to Privatize Federal Lands', Terry Anderson, Vernon Smith, and Emily Simmons offer "a blueprint for auctioning off all public lands over 20-40 years...predicated, of course, on determining its highest-valued use. Highest-valued use means 'productive labor' i.e. ranching, mining, developing, etc. Considering the population of Native peoples in Montana sits roughly at 6.95%, it is easy to deduce that the state's most coveted lands are now in non-Native hands.

Newcomb's solid argument in Pagans in the Promised Land establishes that Johnson v M'Intosh and two other decisions from the 19th century (known as the Marshall Trilogy), are completely dependent on and supported by passages from Genesis about how "the Lord (dominus) granted…the right to subdue and exercise dominion.'[19] Possessive individualism, a feature of the eurochristian worldview, has its genesis in biblical scripture – manifesting in notions like dominion over land and other living beings, a fundamental manifestation of the eurochristian worldview, and one that promotes supremacy over the earth and all living beings. The seed of this way-of-being lies embedded in biblical emplotments of hierarchy, where human beings are divinely commanded to 'be masters of the fish of the sea, the birds of heaven and all living animals on the earth.'[20] Possessive individualism grows even more pronounced in the Protestant Reformation, extolling a personal, one-to-one relationship between God and believer, thus nullifying more communally-shared ways-of-being and practices. This newer theology developed concepts like a 'personal' savior for example, which came to be a central theme of Protestantism. In early colonial writings, it is clear that Native peoples were understood to be much lower along the spectrum of ascendancy, making their conversion to "a more Decent, and English way of Living, as part of becoming 'primitive Christians' a pressing task.[21]

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[19] Newcomb, Pagans in the Promised Land: Decoding the Doctrine of Christian Discovery, 39.

[20] The New Jerusalem Bible, "Genesis 1: 26-7," Jerusalem Bible, 1966, https://bibletold.com/genesis/.

[21] Cotton Mather, The Triumphs of the Reformed Religion, in America: The Life of the Renowned John Eliot, with John Carter Brown Library (Printed by Benjamin Harris and John Allen for Joseph Brunning, at the Prison-Lane., 1691), http://archive.org/details/triumphsofreform00math.

It should not be surprising that this theological commitment has been carried forward, articulated by those in power today in the most strident, exclusionary, crass, and obtuse ways. What is most interesting for my purpose is how the theme of a personal relationship between a deity and an individual is disguised within the United States legal system. The system institutes language and statutes that, even when they include language of 'collective rights,' are structured by concepts of public use that stress rights of individuals to share the space – each individual claim is as legally valid as the next. These laws in place are rooted in fifteenth century papal law and predicated on the dominant worldview that cannot conceive of land apart from the ownership of it. What's more, they are created within a paradigm that imagines land as divinely and rightfully granted to exclusively chosen people.

Reversal and Reorientation

To reverse the direction by which knowledge about the world and the lands we share is produced, authenticated, and circulated calls for Indigenous methodologies and praxis at every level, and within every social institution. Praxes must be localized and remain organized around issues of land. Ignorance of the cognitive processes by which a worldview that features powerful ICMs and narratives of ownership of all things of the earth, is key to its imposition and dominance. Therefore, apprehending how every social institution serves to reiterate and recreate formidable metaphors wherein 'rights' over 'property' and private ownership – are *religiously* promoted, and *sacred* notions of possessive individualism and appropriative self-interest are worshipped and honored is critical. This system dominates throughout the world and will continue to do so until powerful cognitive processes that keep it in place are fully understood, dismantled, and replaced with constructs more aligned with Indigenous values. This is an urgent charge.

Indigenous values of respect, relationality, and reciprocity are mobilized in places, honored in ceremony, and repeated in everyday interactions with all our relations.[22] Prominent values of dominant society stand in contrast: profitability, possessive individualism, and the promotion of rights. When conflicts arise between two irreconcilable ways of being, they are adjudicated in courts of law that are predicated upon and shaped by eurochristian values. Disputes are litigated in these venues and constrained by conceptual categories emphasizing rights (often framed as religious) and ownership claims. As a result of this discursive limitation, any proposed resolution is invariably inadequate. The language of law, cloaked in secular rhetoric, is saturated with ideologies rooted in 4-15th century papal edicts, specifically the 1493 Discovery Doctrine of the papal bull *Inter Caetera*.[23] These facts are at the heart of why I chose to participate in this conference. Ignorance of the cognitive processes by which a worldview that centers around the ongoing seizure of Indigenous lands is constantly recreated via formidable metaphors, is key to its imposition and dominance. Therefore, apprehending how every social institution, wherein 'rights over property and ownership – are *religiously* promoted, and *sacred* notions of possessive individualism and appropriative self-interest are worshipped and honored is critical. This system dominates throughout this nation and will continue to do so until the powerful cognitive processes that keep it in place are known, understood, and replaced. That is what I hope I have contributed to with this project.

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[22] Philip P Arnold, "Urgency of Indigenous Values," Syracuse University Press, 2023, https://press.syr.edu/supressbooks/5835/urgency-of-indigenous-values-the/.

[23] Alexander VI, "Inter Caetera," trans. Sebastian Modrow and Melissa Smith, Indigenous Values Initiative, June 13, 2022, Doctrine of Discovery Project, https://doctrineofdiscovery.org/inter-caetera/.